

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 30, 2026, AT 8:30 A.M.**

These are the tentative rulings for the **THURSDAY, JULY 30, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, JULY 29, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0097654 VINEYARD GATE APTS v. DAVIS, MAHAGANY

This tentative ruling is issued by the **Honorable Albert A. Erkel**. If oral argument is timely requested, it will be heard on **Wednesday, August 5, 2026, at 1:00 p.m. in Department 4**.

Motion to Set Aside Judgment

On July 15, 2026, the court held a bench trial on plaintiff's unlawful detainer complaint. Plaintiff appeared whereas defendant did not. The court entered judgment in favor of plaintiff and against defendant.

The same day, defendant filed an ex parte application for stay pending hearing on motion to set aside judgment that indicated defendant did not receive the court's notice of trial because it was sent to apartment number #110 but defendant resides at apartment number #1100. The court granted a stay and set a hearing on the motion to set aside judgment for July 30, 2026. The court's order also provided

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Defendant shall file and serve a copy of the motion to set aside judgment and this order on plaintiff or, if plaintiff is represented by counsel, then on plaintiff's counsel by no later than July 16, 2026 at 5:00 p.m. Service may be effected by personal service, emailed service, or by facsimile. Proof of service shall be filed with the court no later than July 20, 2026. Failure to timely serve and timely file a proof of service with the court is a sufficient basis for the court to deny defendant's motion
(Order on Ex Parte Application for Stay of Execution, p. 2.)

A review of the court record reveals no proof of service of defendant's motion or the court's order has been filed.

Accordingly, defendant's motion is continued to **August 13, 2026, at 8:30 a.m. in Department 3.**

Defendant shall serve on plaintiff's counsel of record—by personal service, e-mail, or facsimile—their motion to set aside judgment, the court's order on ex parte application for stay of execution, and the court's July 30, 2026, tentative ruling and file a proof of service of these documents on or before **August 4, 2026**. Plaintiff shall file an opposition on or before **August 7, 2026**.

The stay of execution shall be extended to August 13, 2026, at 11:59 p.m.

2. S-CV-0047960 NOVAK, CHRISTOPHER v. THOMPSON, GREGORY

The mediation status conference is dropped from calendar in light of the parties' joint mediation status conference statement filed with the court on July 24, 2026.

3. S-CV-0051046 NELSON, MICHAEL v. RONK, SUZY

Plaintiffs' Motion to Disqualify Burton & Swett as Counsel for Defendants

Plaintiffs move to disqualify the firm Burton & Swett as counsel for defendants on the grounds that defendant Suzy A. Ronk has a claim directly adverse to defendants Kent Rhodes and Susan Rhodes. (CA ST RPC Rule 1.7, subd. (d).)

The court first notes that plaintiffs have standing to bring this motion. (*Kennedy v. Eldridge* (2011) 201 Cal.App.4th 1197, 1204.)